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IN THE HIGH COURT OF KARNATAKA, AT BENGALURU

W.P No. /2025 (KLR)

BETWEEN

Sri.Niranjnamurthy.K.B

.. PETITIONER

AND

The State of Karnataka and others

.. RESPONDENTS

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Bengaluru

Date:


ADVOCATE FOR PETITIONER
(N.Murali)

IN THE HIGH COURT OF KARNATAKA, AT BENGALURU

W.P No. /2025 (KLR)

BETWEEN

Sri.Niranjnamurthy.K.B .. PETITIONER

AND

The State of Karnataka and others .. RESPONDENTS

SYNOPSIS

Sl. No.	Date	Events
1.	-NIL-	The petitioner herein is in unauthorized occupation of 4 acres of land in Sy.No.68/1 of Chikka Agrahara Village, Bukkapatna Hobli, Sira Taluk, Tumkur District.
2.	-NIL-	The petitioner is in possession of the land in question from 2000 and sunk a bore-well in the land in question and obtained electricity connection and planted Areca and Banana plant.
3.	15.12.2022	The petitioner filed application to seeking regularization of the land in question for her unauthorized occupation. The said application was not considered till date, hence this Writ Petition.

BRIEF FACTS OF THE CASE

The petitioner herein is in unauthorized occupation of 4 acres of land in Sy.No.68/1 of Chikka Agrahara Village, Bukkapatna Hobli, Sira Taluk, Tumkur District. The petitioner herein sunk a bore-well in the land in question and obtained electricity connection and planted Areca and Banana plant. The petitioner filed application to seeking regularization of the land in question for her unauthorized occupation. The said application was not considered till date, hence this Writ Petition.

Bengaluru
Date

ADVOCATE FOR PETITIONER
(N.Murali)

IN THE HIGH COURT OF KARNATAKA, AT BENGALURU

(ORIGINAL JURISDICTION)

MEMORANDUM OF WRIT PETITION UNDER ARTICLE 226
AND 227 OF CONSTITUTION OF INDIA

W.P No. _____ / 2025 (KLR-REG)

BETWEEN

Sri.Niranjnamurthy.K.B

Aged 42 years,
S/o. Basavaraju.K.H,
Resident of Kodiyala,
Gubbi Taluk,
Tumkur District-572117.

.. PETITIONER

AND

1. The State of Karnataka,
Department of Land Revenue,
Represented by its Secretary
M.S. Building,
Dr.B.R.Ambedkar Veedhi,
Bengaluru-560001.

2. The Deputy Commissioner,
Tumkur District,
Mini Vidhana Soudha,
Tumkur-572 101.

3. The Tahasildar,
Sira Taluk,
Tumkur District-572 216.

.. RESPONDENTS

**MEMORANDUM OF WRIT PETITION UNDER ARTICLE 226
AND 227 OF CONSTITUTION OF INDIA**

The petitioner submits as follows;

1. The land bearing Sy.No.68/1, measuring 34 acres, situated Chikka Agrahara Village, Bukkapatna Hobli, Sira Taluk, Tumkur District is a Gomal land and in the said land the villagers of Chikka Agrahara Village have been cultivating various extent of the said land from past several years.

2. The petitioner herein is also a native of Chikka Agrahara Village and has been unauthorizedly cultivating an extent of 4-00 acres in the land bearing Sy.No.68/1, measuring 34 acres, situated Chikka Agrahara Village, Bukkapatna Hobli, Sira Taluk, Tumkur District and bounded on East by - Property bearing Sy.No.68/1 of Lakshmaiah S/o.Kempaiah, West by - Property bearing Sy.No.68/1 of Bhagya W/o. Srinivas, North by - Property bearing Sy.No.68/1 of Chandramma W/o.Ramaiah, South by - Property bearing Sy.No.52/1A of Narasamma W/o. Kandrappa from the year 2000 onwards.
3. The petitioner herein is an illiterate rustic villager who belongs to backward community. As the petitioner was not aware about the survey number land he was cultivating, he had submitted the application seeking regularization of his unauthorized occupation on 15.12.2022. The petitioner had gone to a computer center to submit the application to the 3rd respondent for regularizing his unauthorized occupation. At the time of submitting the application, the survey number of the land in the said application was mentioned as Sy.No.268 of Dodda Agrahara Village. The copy of the acknowledgment dated 15.12.2022 is herewith produced and marked as **Annexure-A.**
4. After submitting the application and obtaining the acknowledgment as per Annexure-A, the petitioner came to know about the error in mentioning the survey number as also the name of the village. Hence the petitioner submitted representation to the office of the 3rd respondent to consider the survey number as Sy.No.68/1

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of Chikka Agrahara Village, Bukkapatna Hobli, Sira Taluk.

5. The petitioner had been growing dry crops namely ragi, maize in 4-00 acres of land in Sy.No.68/1 of Chikka Agrahara Village.
6. After coming into force of Rule 108-CCC of the Karnataka Land Revenue Rules, 1966, the petitioner herein submitted the application in Form No.57 to the 3rd respondent herein seeking regularization of his unauthorized occupation of the land bearing Sy.No.68/1, measuring 4-00 acres, situated Chikka Agrahara Village, Bukkapatna Hobli, Sira Taluk, Tumkur District on 15.12.2022.
7. The petitioner herein after having submitted the application to the 3rd respondent seeking regularization of his unauthorized occupation of land was in the fond hope that she would be called upon by the office of the 3rd respondent for considering his application for regularization of his unauthorized occupation.
8. The petitioner has been in peaceful possession enjoyment of the property as unauthorized occupant. The petitioner belongs to backward community. The petitioner has no other lands or property to lead his livelihood. The petitioner and his family members are depended upon the income from the schedule property.
9. As the land bearing Sy.No.68/1 of Chikka Agrahara Village, Bukkapatna Hobli, Sira Taluk, Tumkur District is a dry agricultural land, the petitioner herein in order to cultivate the extent of land held by him has got sunk a bore-well and obtained electricity connection to draw

water and supply the same to the land for cultivating the same. The petitioner has also got constructed agricultural tank in the said land and has planted areca trees and banana plantation in the land. The photographs of the property in question is herewith produced and marked as **Annexure-C, D, E and F.**

10. The petitioner submits that the application submitted by the petitioner seeking regularization of his unauthorized occupation on 15.12.2022 in Application No.BHM3981C088D26A4 is still pending for consideration before the committee for regularization to which the 3rd respondent who is the Secretary.
11. The application filed by the petitioner seeking regularization of unauthorized occupation as per Annexure-A to the writ petition has not yet been considered by the 3rd respondent herein. The 3rd respondent herein having received the application in Form No.57 submitted by the petitioner herein has to send the application with all related documents to the officer authorized by him for verification who has to conduct spot inspection, examining the documentary and circumstantial evidence for determining the application submitted by the applicant and send the report to the Tahsildar within three months from the date of receipt of the documents. In the present case, the petitioner herein has made an application on 15.12.2022 since then, the 3rd respondent has not initiated any action as contemplated under the provision of 94-A of the Karnataka Land Revenue Act R/w Rule 108-CCC of the Karnataka Land Revenue Rules for determining the application.

12. The petitioner herein having not received any communication from the office of the 3rd respondent had personally visited the office to know the status of the application filed by him. The official of the 3rd respondent have intimated that communication would be made after the constitution of the committee for regularization of unauthorized occupation. Till date the petitioner has not received any communication from the office of the 3rd respondent. Hence the petitioner left with no alternative has filed the present writ petition seeking necessary direction to the respondents herein to consider his application.
13. The petitioner has not filed any other Writ petition before this Hon'ble Court or any other forum for the same cause of action and relief.
14. The petitioner has no other alternative remedy except to invoke Writ Jurisdiction of this Hon'ble Court under Article 226 & 227 of the Constitution of India seeking direction to the respondents on the following among other grounds.

GROUNDS

15. The petitioner herein has been in peaceful possession and enjoyment of the land bearing Sy.No.68/1, measuring an extent of 4-00 acres, situated at Chikka Agrahara Village and has been cultivating the same as unauthorized occupant along with his family members from the past several years. Hence the petitioner is entitled to be regularized as unauthorized occupant of the land.
16. The 3rd respondent has failed to exercise the jurisdiction vested in it and discharge the duty, hence appropriate writ

or direction is to be issued for exercising the statutory duty.

17. On account of the 3rd respondent not considering the application submitted by the petitioner, it has resulted in deprivation of the petitioner right to livelihood.
18. As per provisions of 94A of Karnataka Land Revenue Act, the State Government by notification has to constitute in each constituency of the legislative assembly, a committee consisting of such numbers of member of whom one shall be a member of legislative assembly for the purpose of grant under sub-section 4 of the Act. The Government has to form a committee to consider the application seeking regularization of unauthorized occupation. In the present case, the committee has not been formed by the Government.
19. The committee so constituted under the provisions of Section 94A of the Karnataka Land Revenue Act has to follow the procedure prescribed under the said section as also Rule 108-CCC of the Karnataka Land Revenue Rules. As per the said Rules, on receipt of the application in Form No.57, the concerned Tahsildar has to cause the particulars of the application to entered in a register kept in his office in order of seniority from the date of receipt of the application.
20. The Tahsildar after receipt of the application should scrutinize and sent with all related documents to an authorized officer for verification who has to conduct spot inspection by examining the documentary and circumstantial evidence to determine the eligibility or otherwise by giving a finding and report the same to the

Tahsildar, who is the Secretary of the Committee within three months from the date of receipt of the documents. In the present case, the 3rd respondent has not taken any action inspite of the petitioner having submitted the application on 15.12.2022.

21. The Tahsildar on receipt of the report from the authorized officer has to send the same to the Deputy Commissioner, the 2nd respondent herein for necessary action who has to take a decision considering the report forwarded to him. On receipt of the orders from the Deputy Commissioner, the Tahsildar has to place all the eligible application with suitable recommendation to the committee within one month from the receipt of the report that shall be considered. In the present case, the committee has not been formed in Sira Taluk, Tumkur District resulting in the application submitted by the petitioner not been considered till date.
22. The petitioner herein fulfills all the criteria prescribed under the provisions of Karnataka Land Revenue Act and Rules and hence his application for regularization of his unauthorized occupation is to be considered.
23. Under the provisions of the Karnataka land Revenue Act and Rules, the respondents herein are bound to consider the application submitted by the petitioner and as such the non-consideration of the application made by the petitioner has resulted in injustice to the petitioner.
24. The respondents herein have failed to exercise the statutory obligations cast upon them and discharge the same. Hence necessary direction may be issued to them.

25. The inaction of the respondents has resulted in violation of Article 14 and 21 of the Constitution of India. The livelihood of the petitioner is dependent upon the income from the land that is in unauthorized occupation of the petitioner.
26. The inaction on the part of the respondents in not performing their statutory duty to consider the application of petitioner amounts to violation of the fundamental rights of the petitioner granted under the constitution of India.
27. The craves leave of this Hon'ble Court to urge additional grounds if deems necessary.

PRAYER

WHEREFORE the petitioner prays that this Hon'ble Court be pleased to issue a Writ of Mandamus or any other writ, suitable direction to the respondents as under:

- a) Direct the 1st respondent herein to constitute a committee for considering the application in Form No.57 made by the applicants under the provisions of section 94A of the Karnataka Land Revenue Act R/w Rule 108-CCC of Karnataka Land Revenue Rules;
- b) Direct the committee for regularization of unauthorized occupation to consider the application made by the petitioner to the 3rd respondent in Form No.57 dated 15.12.2022 in respect of 4-00 acres of land in Sy.No.68/1 of Chikka Agrahara Village;

- c) Grant such other relief as deemed fit in the facts and circumstance of the case by allowing the above Writ Petition with cost in the interest of justice.

Bengaluru
Date :

**ADVOCATE FOR PETITIONER
(MURALI.N)**

Address for Service

MURALI.N
Advocate
No.24, Raghavendra mansion,
1st Main, Sheshadripuram,
Bengaluru-560 020
M.No.9448834909

IN THE HIGH COURT OF KARNATAKA, AT BENGALURU

W.P No. /2025 (KLR)

BETWEEN

Sri.Niranjanamurthy.K.B .. PETITIONER

AND

The State of Karnataka,
Department of Land Revenue,
Represented by its Secretary & others .. RESPONDENTS

VERIFYING AFFIDAVIT

I, **Niranjanamurthy.K.B**, aged 42 years, S/o. Basavaraju.K.H, resident of Kodiyala, Gubbi Taluk, Tumkur District-572117, now at Bengaluru, do hereby solemnly affirm and state on oath as follows;

1. I am the petitioner in the above case and I know the facts and circumstance of the case. Hence, I am swearing to this affidavit.
2. I state that, the contents mentioned in the para No.1 to 27 of Writ Petition is true and correct.
3. Annexures-A to E are the true copies of the originals.

What is stated above are true are correct to the best of my knowledge and belief.

Identified by me,

Advocate

Deponent

Bengaluru

Date :

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ANNEXURE-A

ನೋಂದಣಿ ಸಂಖ್ಯೆ : BHM3981C088D26A4

ಸ್ಥಿತಿ

ದಿನಾಂಕ : 15-12-22 16:00:19

ಜಿಲ್ಲೆ ತುಮಕೂರು	ತಾಲ್ಲೂಕು ಸಿರಾ	ಹೋಬಳಿ ಬುಕ್ಕಾಪಟ್ಟಣ	ಗ್ರಾಮ ದೊಡ್ಡಅಗ್ರಹಾರ	ಸರ್ವೆ ಸಂಖ್ಯೆ 268	ಸರ್ ನಾಲ್ / ಹಿಸಾ ಸಂಖ್ಯೆ */	ವಿಸ್ತೀರ್ಣ 4 - 0 - 0.00
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ಮೇಲೆ ನಮೂದಿಸಿದ ಜಮೀನಿನ ಅನಧಿಕೃತ ಸಾಗುವಳಿ ಸಕ್ರಮಿಕರಣಕ್ಕಾಗಿ ಶ್ರೀ/ಶ್ರೀಮತಿ ನಿರಂಜನಮೂರ್ತಿ ಕೆ ಬಿ ರವರಿಂದ ಅರ್ಜಿ ಸ್ವೀಕರಿಸಲ್ಪಟ್ಟಿದೆ.

ಅರ್ಜಿ ಸ್ವೀಕರಿಸಿದ ದಿನಾಂಕ ಸಹಾಯಕನ ಸಹಿ
ಮತ್ತು ಮೊಹರು

ANNEXURE-B

13

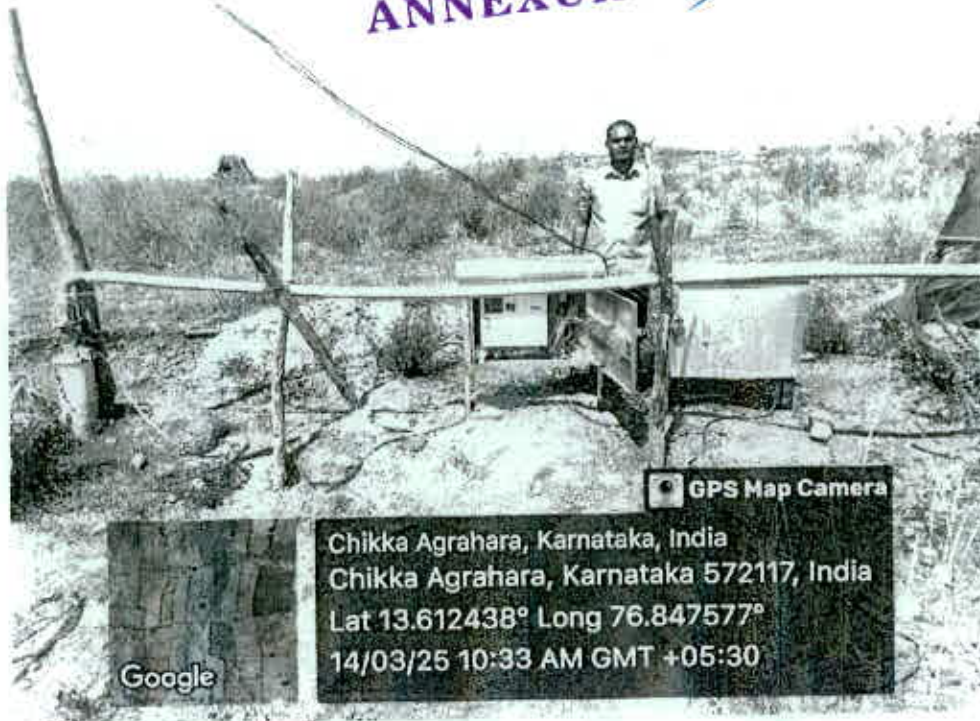


ANNEXURE-C



ANNEXURE-D

14



ANNEXURE-E



ANNEXURE-F

15



ANNEXURE-F1.

